

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

November 12, 2019

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Case, and pursuant to support received by Mr. Roybal and Mr. Shanor, Agenda Item #16(a) was removed from the Consent Agenda. Dr. Rinne moved to approve remaining Consent Agenda items, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on October 28, 2019. Motion (per Consent Agenda) carried.

Mayor Orr provided a reminder that vouchers are no longer being voted on. No action was taken on the vouchers as presented.

Mayor Orr opened a public hearing for a bar and grill liquor license application filed with the City Clerk’s office for Goalz DH Cheyenne, WY LLC d/b/a Dog Haus, 3838 Atkin St., Cheyenne, Wyoming. There being no comments or input and the purpose of the hearing having been met, Mayor Orr closed the public hearing and referred the application to Finance Committee.

ORDINANCE – 3rd READING – Amending Chapter 2.04, Mayor and City Council, within Title 2, Administration and Personnel, and Chapter 3.04, Fiscal Provisions Generally, within Title 3, Revenue and Finance, of the Municipal Code of the City of Cheyenne, Wyoming (Postponed from 10/28/2019). Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Shanor. Mr. White moved to amend by substitute dated 10/30/2019, seconded by Mr. Luna. Motion to amend carried. Voting “yes” – all members of the governing body. Mike O’Donnell, City Attorney, provided information on the ordinance and amendment generally stating the contract threshold will remain the same (\$35,000.00) and the professional services threshold amount will now be \$25,000.00. Main motion as amended carried. Voting “yes” – all members of the governing body. (#4290)

ORDINANCE – 1st READING – Pursuant to Section 2.2.2 Planned Development – Regulating Plan or Development Master Plan, Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD – Planned Unit Development District of the Unified Development Code, amending Ordinance No. 3841 by modifying certain standards of the adopted district, Planned Unit Development (PUD), for Lots 1-3, Block 1, Lots 1-4, Block 2, (less that portion platted to Pointe Plaza, 2nd Filing), and Lots 1-2, Block 3, Pointe Plaza; a portion of Lot 2, Block 1, Pointe Plaza, 2nd Filing; Lots 4-23, Block 1, Pointe Plaza, 3rd Filing; all of Point Plaza 4th Filing; and all of Pointe Plaza, 5th Filing, Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Gardenia Drive and Powderhouse Road) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Re-appropriating the fiscal year 2020 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#6020)

[CA] RESOLUTION – To adopt the Certificate of Canvass and Declaration of Results of the Canvassing Board for the Cheyenne Downtown Development Authority District Special Election held October 16, 2019. Motion (per Consent Agenda) carried. (#6021)

RESOLUTION - Authorizing and recognizing the need to return unused funds from the Mayor's Challenge Grant to the Grantor – referred to Finance Committee. (Sponsors – Mr. Case, Mr. Esquibel, Mr. Laybourn, Mr. Luna, Dr. Rinne, Mr. Roybal, Mr. Shanor and Mr. White). Mr. White advised the item was reviewed under other items for the agenda at the 11/4/2019 Finance Committee meeting, therefore, provisions of Title 2 of City Code have been met. Mr. White moved to adopt, seconded by Mr. Roybal. Discussion followed and included: the purpose for the resolution related to public transparency; expenditures above the amount of \$35,000.00 go before the governing body for approval; documentation and process for the resolution; opposition of proposed funding mechanism for returning unused funds and the importance of returning unused portion of funds. Upon inquiry, Mike O'Donnell, City Attorney, explained the 6th "Whereas" clause related to reconciling funds stating a reconciliation is currently being conducted and the information will be shared with the governing body when it is completed. He noted a subsequent meeting will be held to determine how to proceed. Interest was expressed by city council members to be included in the meeting. Mr. O'Donnell explained the reconciliation information will also be presented to the public. Mayor Orr noted she has reached out to council members to meet for the purpose of discussing the resolution topic noting only a few responded. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Case and Mr. Cook voting "no". (#6022)

[CA] RESOLUTION – Directing all revenue from City of Cheyenne Contract No. 5902 to be split evenly between the City of Cheyenne, Solid Waste Enterprise Fund, the Board of Public Utilities, and the newly established Belvoir Ranch Recreation Special Revenue Fund – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Certifying the East Dell Range Boulevard/US 30 Corridor Study – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] Preliminary Plat for Alliance Addition, 4th Filing, a replat of a portion of Lot 1, Block 1, Alliance Addition, Cheyenne, Wyoming (located at the northwest corner of the intersection of Ridge Road and Jackson Street) – referred to Public Services Committee.

2019-2020 Collective Labor Agreement between the City of Cheyenne and Cheyenne Firefighters, Local Union No. 279, International Association of Firefighters. Mr. White moved to approve, seconded by Mr. Esquibel. Mike O'Donnell, City Attorney, requested the item to be postponed for 2 weeks as "Kelly Day" computation numbers need to be updated to reflect correct numbers. Dr. Rinne moved to postpone to 11/25/2019, seconded by Mr. White. Upon inquiry, Mr. O'Donnell explained the current Collective Labor Agreement for fiscal year 2019-2020 is being finalized. Motion to postpone carried. Voting "yes" – all members of the governing body.

Land Purchase and Sale Agreement between the City of Cheyenne and Victory Real Estate Management, LLC, for the purchase of real property described as a portion of Lot 1, Block 1, P.A.S. Subdivision, City of Cheyenne, Laramie County, Wyoming, for the appraised value of \$329,630.00, for economic development purposes (General Fund). Brendan Ames, Chief Economic Development Officer, explained the agreement is for the Hitching Post site which was previously approved, and this agreement for an amended amount. He further explained the purchase will allow the city to have access ownership to the property, will provide more parking for the Ice and Events Center and will allow for future success of the site. It was noted that the purchase agreement for the Atlas Hotel will soon be finalized which will benefit economic development. Mr. Ames further explained there are some parcels east of the site that are currently under contract. Upon inquiry, Bruce Trembath, Chief Building Official, reported he has been researching prices for abatement and how to better secure the area. Mr. Trembath advised estimates include: \$9,600.00 to board up structures, \$14,000.00 for chain link fencing and approximately \$37,000.00 for 50% solar motion lighting. He provided project phase abatement estimates and noted estimates are for all buildings. Upon inquiry, Mr. Trembath advised he will provide figures provided by the seller on asbestos abatement and demolition. Alessandra McCoy Fakelman, Assistant City Attorney, advised the city is proposing to purchase 2 buildings (buildings 3,4 and 5 which consists of 2 physical structures) and noted that because contamination levels are unknown, it is hard to provide abatement costs and some rehabilitation may be possible. It was noted that grant funding can be considered as possible funding source, however the city must own the property to be eligible to apply. Ms. McCoy Fakelman advised the city would be eligible for a Brownsfield site grant after site stabilization and with the way the agreement is written and because of a clean-up lien that is on the front 4 acres of the property, if those acres are to be subdivided and sold, the city could collect the lien dollars to be used for abatement purposes. Upon inquiry, Ms. McCoy Fakelman reported there is not a purchase and sale agreement currently for a neighborhood facility building and property. Upon inquiry related to the neighborhood facility building and property, Teresa Moore, Community Recreation and Events Director, reported Laramie County School District # 1 is doing their due diligence and the first Environmental Site Assessment report has been completed and is clear. She noted they are looking at drainage studies to make sure they can build on the site, then will look at negotiating a purchase and sale agreement which is anticipated for the first of the year. Mr. White moved to approve in an amount not to exceed \$329,632.00, seconded by Mr. Roybal. Discussion included history of proposed purchase and sale agreement, liability of purchase with many unknowns including funding sources,

postponement of the item and placing conditions on the purchase and sale agreement. Upon inquiry Mr. O'Donnell confirmed conditions could be placed on the purchase and sale agreement and that in order to be eligible for CDGB grants, the city must take ownership of the property before the end of the year. Dr. Rinne moved to postpone, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body.

[CA] Grant Award Agreement between the City of Cheyenne, Police Department, and the Wyoming Office of Homeland Security for the purchase of a robot platform to support missions in explosive device detection, mitigation and remediation. Motion (per Consent Agenda) carried. (#7105)

[CA] Minimum Revenue Guarantee Payment Agreement between the City of Cheyenne and the Cheyenne Regional Air Service Focus Team (CRAFT) for payments to Sky West Airlines for providing scheduled flight services between Cheyenne, Wyoming, and Dallas/Fort Worth, Texas (General Fund Reserves) – referred to Finance Committee.

[CA] Grant Award Agreement with the State of Wyoming Office of Homeland Security for a grant from the U.S. Department of Homeland Security (DHS), FEMA, Grant Programs Directorate, SHSP Grant Fiscal Year 2019 in the amount of \$102,434.00 for the Cheyenne Regional Response Team #7 (DHS Grant) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Trihydro Corporation, Laramie, WY, for the Subsurface Methane Investigation at the Happy Jack Landfill (Solid Waste Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, and C2R Landfill Equipment & Service Environmental Systems, Huffman, Texas, for the purchase and installation of two pumps and control panels for leachate wells NT-3 and NT-4 at the Happy Jack Landfill (Solid Waste Fund) – referred to Finance Committee.

[CA] Telecommunications Right-of-Way License and Use Agreement between Advanced Communications Technology, Inc., Sheridan, WY, and the City of Cheyenne (revenue to the city) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #6924 between the City of Cheyenne and TC Solutions, LLC, Cheyenne, for Owner's Representative Services for the New Municipal Court Project (General Fund Reserves and Specific Purpose Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$172,400.00). (#6924)

[CA] Contract Modification #1 to Contract #6971 between the City of Cheyenne and Jerry Berggren for the Cheyenne Regional Airport Fountain Partial Restoration Project to extend the deadline (SHPO 56-19-03 and CTF 210-19-S Grants Funds). Motion (per Consent Agenda) carried. (#6971)

[CA] Contract Modification #1 to Contract #7066 between the City of Cheyenne and American Contracting of Wyoming, Cheyenne, for the Cheyenne Regional Airport Fountain Partial Restoration Project to extend the deadline and increase the contract amount (SHPO 56-19-03 and CTF 210-19-S Grant Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$1,800.00). (#7066)

Contract Modification #1 to Contract #7026 between the City of Cheyenne and Simon Contractors, Cheyenne, for the 2019/2020 Miscellaneous Street Repair Project. (2015-2018 1% Sales Tax) (RECONSIDERED AND POSTPONED FROM 10-28-19). The item died to the lack of a motion to approve. (Clerk's note: for the record and to meet procedural guidelines, this item will need to be voted on at the 11-25-19 meeting of the governing body under other business as it was reconsidered and back before the governing body as prior to the last vote taken on 10-14-19)

[CA] Contract Modification #2 to Contract #6625 between the City of Cheyenne and Western Research and Development, Ltd., for additional design services for the On-Call Traffic Engineering Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7083 between the City of Cheyenne and STC Construction Company, Cheyenne, for the 2019 Wearing Course Project – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #6885 between the City of Cheyenne and Simons Contractors, Cheyenne, for the 2018 Mountain Road and 20th Street Pavement Rehabilitation project – referred to Finance Committee.

[CA] Consideration of Bid #E-3-20 for furnishing one (1) new 2019-2020 1-ton regular cab, full size pickup truck, 4x4 with 8-foot box and Fleet work truck package for the Forestry Division (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Spradley-Barr Motors, Cheyenne, in an amount not to exceed \$35,603.00).

[CA] Consideration of Bid #S-6-20 for a contract between the City of Cheyenne and Evergreen Tennis Courts, Inc., Loveland, CO, for the Jaycee Park Tennis Court Asphalt Overlay and Resurfacing Project (Recreation Mill Grant) – referred to Finance Committee.

Under other business:

Mike O'Donnell, City Attorney, reported on a petition filed with the City Clerk's office under the authority of State Statute §15-1-103(j) and inquired on how the governing body would like to approach the matter. Mayor Orr advised she believes it would be appropriate for the City Attorney to investigate the matter and prepare a response with his findings. Mr. O'Donnell explained he will investigate the matter and prepare a memo.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:39 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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